

1 ENGROSSED HOUSE
2 BILL NO. 4092

By: Norwood, Pae, and Waldron
of the House

3 and

4 Stanley of the Senate

5
6 [988 Mental Health Lifeline - terms - Department of
7 Mental Health and Substance Abuse Services -
8 activities - standards - rules - 988 Trust Fund -
9 purpose - enforcement - codification - effective
10 date]
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13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 12-200 of Title 43A, unless
16 there is created a duplication in numbering, reads as follows:

17 As used in this section:

18 1. "911" means any telephone system whereby telephone
19 subscribers may utilize a three-digit number (9-1-1) for reporting
20 an emergency to the appropriate public agency providing law
21 enforcement, fire, medical or other emergency services, including
22 ancillary communications systems and personnel necessary to pass the
23 reported emergency to the appropriate emergency service and which
24 the wireless service provider is required to provide pursuant to the

1 Federal Communications Commission Order 94-102, 961 Federal Register
2 40348;

3 2. "988" means the universal telephone number within the United
4 States designated by the Federal Communications Commission for the
5 purpose of the National Suicide Prevention Lifeline program
6 operating through the 988 Mental Health Lifeline (988 Lifeline), or
7 its successor maintained by the Assistant Secretary for Mental
8 Health and Substance Use under Section 520E-3 of the Public Health
9 Service Act, 42 U.S.C. 290bb-36c;

10 3. "988 Lifeline Revolving Fund" means the 988 Mental Health
11 Lifeline program fund created pursuant to Section 3 of this act;

12 4. "Behavioral health crisis services" are intensive services
13 that are provided to address or prevent behavioral health symptoms,
14 situations, or events that may negatively impact an individual's
15 ability to function within his or her current family or caregiver
16 and living situation, school, workplace, or community. Behavioral
17 health crisis services are for anyone, anywhere, and at any time and
18 can be provided in a variety of settings, including via text or
19 telephone, face-to-face at an individual's home, or in the
20 community;

21 5. "Behavioral health crisis system" is an organized set of
22 structures, processes, and services in place to meet all types of
23 urgent and emerging mental health and substance use needs in a
24 defined population or community, effectively and efficiently.

1 Essential elements of a behavioral health crisis system include 988
2 crisis lines that accept all calls and texts, and provide support
3 and referrals based on the needs of the individual or family member
4 or caregiver; mobile crisis teams that respond to the location of
5 need in the community; and crisis stabilization facilities that
6 serve everyone who enters its doors from all referral sources.

7 Comprehensive behavioral health crisis systems:

- 8 a. address recovery needs, significant use of peers, and
9 trauma-informed care,
- 10 b. ensure safety and security for staff and those in
11 crisis, and
- 12 c. involve collaboration with law enforcement and
13 emergency medical services;

14 6. "Certified community behavioral health clinics (CCBHC)" are
15 facilities as defined under Section 1913(c) of the Public Health
16 Services Act or Section 223(d) of the Protecting Access to Medicare
17 Act of 2014 (PAMA). CCBHC's are also certified by the Department of
18 Mental Health and Substance Abuse Services;

19 7. "Co-response" is a collaborative approach to behavioral
20 health crisis developed in response to the need for local adaptation
21 in which first responders, sometimes including law enforcement
22 officers, are partnered with behavioral health professionals as an
23 effective way to respond to behavioral health crises and other
24 situations involving unmet behavioral health needs;

1 8. "Crisis stabilization services" reflect a range of models
2 and care to support individuals through emergent and urgent
3 behavioral health needs. Crisis stabilization services involve
4 facility-, home-, and community-based services that provide access
5 to care and stabilization for adults and youth in crisis. Crisis
6 stabilization services are delivered across a continuum of care that
7 includes no barrier, low barrier, and referral-based services;

8 9. "Mobile crisis team" means a multidisciplinary behavioral
9 health team that includes at least one behavioral health care
10 professional who is capable of conducting an assessment of the
11 individual, in accordance with the professional's permitted scope of
12 practice under state law, and other professionals or
13 paraprofessionals with appropriate expertise in behavioral health or
14 mental health crisis response, including nurses, social workers,
15 peer support specialists, and others, whose members are trained in
16 trauma-informed care, de-escalation strategies, and harm reduction;
17 that is able to respond in a timely manner and, where appropriate,
18 provide screening and assessment; stabilization and de-escalation;
19 and coordination with, and referrals to, health, social, and other
20 services and supports as needed; that maintains relationships with
21 relevant community partners, including medical and behavioral; and

22 10. "Urgent Recovery Center" is an ambulatory setting that
23 offers safe and time-limited services and supports to individuals
24 experiencing behavioral health crisis. This setting is an

1 alternative to the use of hospital emergency departments or more
2 intensive crisis services.

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 12-201 of Title 43A, unless
5 there is created a duplication in numbering, reads as follows:

6 A. The State of Oklahoma shall designate the Department of
7 Mental Health and Substance Abuse Services to have primary oversight
8 over the suicide prevention and crisis service activities and
9 essential coordination with designated 988 Lifeline Crisis Centers
10 to provide crisis intervention services and crisis care coordination
11 to individuals accessing the 988 Mental Health Lifeline program from
12 any jurisdiction within Oklahoma twenty-four (24) hours a day, seven
13 (7) days a week.

14 B. The Oklahoma Department of Mental Health and Substance Abuse
15 Services (ODMHSAS) shall have primary oversight of suicide
16 prevention and crisis service activities.

17 C. The designated 988 Lifeline Crisis Centers shall meet 988
18 Lifeline Program requirements and best practices guidelines for
19 operational, performance and clinical standards.

20 D. The ODMHSAS shall use its authority to promulgate rules and
21 regulations to allow appropriate information sharing and
22 communication between and across crisis and emergency response
23 systems for the purpose of real-time crisis care coordination
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1 including, but not limited to, deployment of crisis and outgoing
2 services and linked, flexible services specific to crisis response.

3 E. The state or related public health authority shall assure
4 active collaborations and coordination of service linkages between
5 the designated centers and crisis receiving and stabilization
6 services for individuals accessing the 988 Lifeline through
7 appropriate information sharing regarding availability of services.

8 F. The state or related public health authority and designated
9 988 Lifeline Crisis Centers shall utilize technology to enhance
10 communication and coordination in the delivery of behavioral health
11 crisis services, and for data collection, analysis and sharing.

12 SECTION 3. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 12-202 of Title 43A, unless
14 there is created a duplication in numbering, reads as follows:

15 There is hereby created in the State Treasury a revolving fund
16 for the Department of Mental Health and Substance Abuse Services to
17 be designated the "988 Lifeline Revolving Fund". The fund shall be
18 a continuing fund, not subject to fiscal year limitations, and shall
19 consist of all monies received by the Department as directed by law,
20 or by grants or gifts to support the Lifeline. All monies accruing
21 to the credit of said fund are hereby appropriated and may be
22 budgeted and expended by the Department of Mental Health and
23 Substance Abuse Services for the purpose of staffing, supporting,
24 and operating the 988 Lifeline system created and maintained in the

1 National Suicide Hotline Designation Act of 2020, the Federal
2 Communication Commission's rules adopted July 16, 2020, and October
3 17, 2024, and the National Guidelines for a Behavioral Health
4 Coordinated System of Crisis Care. Expenditures from said fund
5 shall be made upon warrants issued by the State Treasurer against
6 claims filed as prescribed by law with the Director of the Office of
7 Management and Enterprise Services for approval and payment.

8 SECTION 4. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 12-203 of Title 43A, unless
10 there is created a duplication in numbering, reads as follows:

11 The State of Oklahoma shall implement strategies to ensure that
12 the behavioral health crisis service system is adequately funded,
13 including mechanisms for reimbursement of behavioral health crisis
14 response, but not limited to:

15 1. Ensuring that to the extent available any necessary federal
16 approvals are obtained and federal financial participation is
17 available and is not otherwise jeopardized, seeking to maximize all
18 available federal funding sources for the purposes of behavioral
19 health crisis services and administrative activities related to 988
20 implementation, including:

- 21 a. federal Medicaid reimbursement for services,
- 22 b. federal Medicaid reimbursement for administrative
- 23 expenses, including the development and maintenance of
- 24 information technology; and supporting implementation

1 of the behavioral health crisis continuum through
2 Medicaid and the Children's Health Insurance Program
3 (CHIP) through Section 5124 of the Consolidated
4 Appropriations Act of 2023 (CAA, 2023), and

5 c. federal grants;

6 2. Exercising the full authority of the Oklahoma Insurance
7 Department and Oklahoma Health Care Authority to verify
8 reimbursement to certified community behavioral health clinics and
9 state-operated urgent recovery centers and crisis stabilization
10 units for medically necessary behavioral health crisis services,
11 like mobile crisis response and crisis stabilization services, by
12 health care service plans and disability insurers, and consistent
13 with the requirements of the federal Mental Health Parity and
14 Addiction Equity Act of 2008 in accordance with the amendments made
15 to the law in 2021, and pursuant to the No Surprises Act and its
16 implementing regulations.

17 SECTION 5. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 23rd day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate